

REQUEST FOR PAYMENT OF UNDERPAID LIVING ALLOWANCE

For couples paid at the 88% rate: Alberta Regulation 244/2026

ADSB-CUPR-001 v1.0 • Released October 2026

WHO THIS FORM IS FOR

Use this letter if you and your spouse or partner were both on AISH or ADAP, and each of you was paid 88% of the living allowance in place of the full amount. On the government's own rate table, the 88% amount is \$1,708 a month on AISH and \$1,532 a month on ADAP. If your living allowance was one of those amounts in any month, this form is for you. If you are single, or your partner is not on AISH or ADAP, the 88% rule did not apply to you and you do not need this form.

WHAT CHANGED

On October 1, 2026, the Alberta government made Order in Council 342/2026. It was filed the same day as Alberta Regulation 244/2026. It changes the AISH General Regulation (Alberta Regulation 96/2026) in two ways:

1. It repeals section 8(4). That was the rule that paid each partner 88% of the living allowance.
2. It adds section 20(1.1). That section says a client who was paid at the 88% amount is treated as underpaid for each month they were paid that amount, and that the director "must pay" the difference between what was paid and the full living allowance.

The full living allowance in the regulation is \$1,940 a month for AISH and \$1,740 a month for ADAP. The exact words of the regulation are quoted in the letter on page 2.

WHAT THIS FORM DOES, AND WHAT IT DOES NOT DO

The regulation puts the duty to pay on the government. It does not say you have to apply. But it also does not say when the money will be paid, and as of October 5, 2026 the government had made no public announcement about it. This letter puts your request in writing, with a date, so there is a record. It asks for the payment, for the calculation, and for notice before anything is taken off the amount.

This form is a community tool. It is not legal advice, and it cannot promise a payment date. The regulation does not set one.

HOW TO USE THIS FORM

1. Each partner fills in and sends their own letter. The regulation speaks of each "client" separately.
2. Fill in the boxes on this page, the facts on page 2, and sign on page 3.
3. Send it to the AISH or ADAP office that holds your file. Email is best, because it shows the date. Office contacts are at alberta.ca/contact-aish.
4. Keep a copy of the letter and proof that you sent it.
5. Keep every payment statement for each month you were paid at the 88% amount. You do not need to attach them, but have them ready.

TO: The Director, Assured Income for the Severely Handicapped (AISH)
and Alberta Disability Assistance Program (ADAP)

RE: Payment of underpaid living allowance under section 20(1.1), AISH General Regulation

Date of Letter

AISH / ADAP File No.

Office This Is Sent To

My Program (check one)

☐ AISH

☐ ADAP

continued on page 2

UNDERPAID LIVING ALLOWANCE REQUEST (continued)

The letter

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Dear Director,

I am a client of the program checked on page 1. My spouse or cohabiting partner is also a client of AISH or ADAP. I was provided a living allowance benefit in a monthly amount determined in accordance with section 8(4) of the Assured Income for the Severely Handicapped General Regulation (Alberta Regulation 96/2026), which set my living allowance at 88% of the full monthly amount.

THE REGULATION

Alberta Regulation 244/2026, made by Order in Council 342/2026 and filed on October 1, 2026, amends Alberta Regulation 96/2026. Section 3(b) of the amending regulation amends section 8 "by repealing subsection (4)". Section 4 adds the following after section 20(1):

(1.1) If a client was provided a living allowance benefit in a monthly amount determined in accordance with section 8(4) before its repeal, a director is deemed to have determined under subsection (1) that the client was underpaid a benefit in the month that the client was provided a living allowance benefit in that monthly amount, and the outstanding amount that the director must pay to the client under subsection (1) is an amount equal to the difference between that monthly amount and the monthly amount of the living allowance benefit set out in section 8(2) or (3), as applicable.

Section 20(1) of the regulation reads: "Where a director determines that a client was underpaid a benefit, the director must pay the outstanding amount to the client."

THE FACTS

Fill in what you know. If you are not sure of a month or an amount, write "not sure" and ask for it in the calculation.

First month I was paid at the 88% amount

Last month I was paid at the 88% amount

Monthly living allowance I was paid (\$)

Number of months at that amount (if known)

My partner's name (optional; my partner is sending a separate letter)

Anything else the office should know (optional)

continued on page 3

UNDERPAID LIVING ALLOWANCE REQUEST (continued)

What I am asking for, and signature

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I AM REQUESTING

1. Payment of the outstanding amount for every month in which I was provided a living allowance benefit at the section 8(4) amount, as section 20(1.1) says the director "must pay".
2. A written calculation, month by month, showing the amount I was paid, the full amount under section 8(2) or (3), and the difference.
3. Written confirmation of the date the outstanding amount will be paid, and how it will be paid.
4. Written confirmation that my living allowance is now being paid at the full monthly amount under section 8(2) or (3), and the month that began.
5. If the department intends to deduct anything from the outstanding amount under section 20(2) before paying it: written notice, before the deduction is made, of the amount, what debt or repayment it is for, and the authority relied on.
6. A reply to this letter in writing, sent to the contact details below.

I am keeping a copy of this letter and proof of the date it was sent.

Thank you for your attention to this.

Sincerely,

Signature (typed or signed)

Date

Printed Name

AISH / ADAP File No.

Contact Email

Contact Phone

Mailing Address

If someone is signing for the client: their name and role (trustee, financial administrator, attorney)

AFTER YOU SEND IT

1. Write down the date you sent it and who you sent it to.
2. If you get a reply, keep it. If the reply gives an amount, check it against your payment statements.
3. If a payment arrives with no letter, ask in writing for the month by month calculation.
4. If you are told an amount is being held back for a debt, ask for that decision in writing.

Sources: Order in Council 342/2026 and Alberta Regulation 244/2026 (Alberta King's Printer), read October 5, 2026. Alberta Regulation 96/2026, sections 8(2), 8(3), 8(4) and 20. Disability Income Assistance policy manual, Living Allowance page (88% amounts), read October 5, 2026. The amending regulation states no coming-into-force date and no payment date. This is a community tool, not legal advice.